

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1812

By: Newton

AS INTRODUCED

An Act relating to supervision of Advanced Practice Registered Nurses; providing definitions; providing eligibility requirements for physicians; providing limits; providing for exceptions; providing certain responsibilities; providing for disciplinary action; authorizing penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 479 of Title 59, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Advanced Practice Registered Nurse" or "(APRN)" means a registered nurse who has obtained a license from the Oklahoma Board of Nursing to practice advanced registered nursing;

2. "Board" means the State Board of Osteopathic Examiners or State Board of Medical Licensure and Supervision;

3. "Mid-level provider" means a licensed Advanced Practice Registered Nurse by the Oklahoma Board of Nursing or a Physician's

1 Assistant licensed by the Oklahoma Board of Medical Licensure and
2 Supervision;

3 4. "Proper physician supervision" means that the supervising
4 physician routinely reviews the prescribing patterns of an Advanced
5 Practice Registered Nurse under his or her supervision and that the
6 supervising physician is available to the Advanced Practice
7 Registered Nurse for consultation in-person or by telemedicine
8 within a reasonable timeframe not exceeding forty-eight (48) hours;

9 5. "Supervising physician" means a licensed allopathic or
10 osteopathic physician in good standing who is responsible for
11 supervising and overseeing the prescribing practices of an Advanced
12 Practice Registered Nurse; and

13 6. "Verified complaint" means the formal allegation of at least
14 one violation of statutes or administrative rules against a
15 physician filed by the board.

16 B. To be eligible to serve as a supervising physician for an
17 Advanced Practice Registered Nurse, an allopathic or osteopathic
18 physician shall meet the following criteria:

19 1. Have possession of a full and unrestricted Oklahoma license
20 to practice allopathic or osteopathic medicine;

21 2. Have possession of a valid permit to prescribe controlled
22 drugs with the Drug Enforcement Agency (DEA) and Oklahoma Bureau of
23 Narcotics and Dangerous Drugs Control (OBNDD); and

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1 3. Be fully trained and qualified in the field of the APRN's
2 specialty or in the services and procedures the APRN is to provide.

3 C. A supervising physician may charge a reasonable fee to the
4 APRN for his or her supervision services, which shall be disclosed
5 in a written agreement. Any fees charged by a supervising physician
6 shall be appropriate based on the actual duties and responsibilities
7 of the supervising physician as outlined in a written agreement.
8 The fees charged shall be a fair-market-value hourly rate as defined
9 by the respective board biannually. A supervising physician who
10 charges an Advanced Practice Registered Nurse for supervision
11 services and fails to provided proper physician supervision may be
12 subject to discipline by the physician's respective board. This
13 subsection does not relate to or impact any compensation a
14 supervising physician receives from his or her employer or health
15 care entity for supervision services. It only pertains to
16 compensation received directly from the APRN.

17 D. All supervising physicians shall have a written agreement
18 with each APRN he or she supervises. The written agreement shall
19 outline any fees charged for supervision services, the scope of the
20 Advanced Practice Registered Nurse's practice, including any
21 limitations on prescribing controlled drugs, and the extent of the
22 supervision required. The physician shall file the written
23 agreement with the respective licensing board.

1 E. A supervising physician shall notify Advance Practice
2 Registered Nurses under his or her supervision of reasonably
3 anticipated periods of unavailability or incapacity on the part of
4 the supervising physicians. Notice shall be given by the method
5 agreed to by the supervising physician and the Advanced Practice
6 Registered Nurse within the written supervision agreement.

7 F. The supervising physician shall report to the Board and
8 Advanced Practice Registered Nurse any changes to the supervising
9 relationship within fourteen (14) days, including the addition or
10 removal of an Advanced Practice Registered Nurse or changes to the
11 practice address, cell phone numbers, the scope of the supervision
12 relationship, or prescriptive authority.

13 G. The Board shall not charge any fees to supervising
14 physicians or Advanced Practice Registered Nurses for the
15 maintenance and tracking of the supervision relationship.

16 H. The Board shall promulgate rules establishing the
17 expectations for providing proper supervision to Advanced Practice
18 Registered Nurses, including:

19 1. The charging of reasonable fees to provide supervision
20 services;

21 2. Continuous availability of direct communications either in
22 person or by electronic communications between the APRN and
23 supervising physician;

1 3. Oversight and acceptance of responsibility for the ordering
2 and transmission of written, telephonic electronic, or oral
3 prescriptions for drugs and other medical supplies, subject to a
4 defined formulary in Section 567.3a of Title 59 of the Oklahoma
5 Statutes;

6 4. Regular chart review;

7 5. The delineation of a plan for emergencies; and

8 6. The designation of an alternate physician in the absence of
9 the supervising physician.

10 I. Failure to comply with these rules may result in
11 disciplinary action by the board.

12 J. The Executive Director of the respective board shall report
13 annually to the Board the number of complaints received in relation
14 to this section of law.

15 K. The Executive Director of the respective board shall create
16 and maintain a list of physicians on the agency's official website
17 who are willing to serve as a supervising physician to an Advanced
18 Practice Registered Nurse licensed in Oklahoma.

19 SECTION 2. This act shall become effective November 1, 2025.
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